



Public Libraries and Museums Act 1964

1964 CHAPTER 75

An Act to place the public library service provided by local authorities in England and Wales under the superintendence of the Secretary of State, to make new provision for regulating and improving that service and as to the provision and maintenance of museums and art galleries by such authorities, and for purposes connected with the matters aforesaid. [31st July 1964]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

The public library service

1.—(1) From the commencement of this Act it shall be the duty of the Secretary of State to superintend, and promote the improvement of, the public library service provided by local authorities in England and Wales, and to secure the proper discharge by local authorities of the functions in relation to libraries conferred on them as library authorities by or under this Act.

Secretary
of State to
superintend
library
service.

(2) Every library authority shall furnish such information, and provide such facilities for the inspection of library premises, stocks and records, as the Secretary of State may require for carrying out his duty under this section.

2.—(1) There shall be two Library Advisory Councils, one for England (excluding Monmouthshire) and the other for Wales and Monmouthshire, and it shall be the duty of each Council to advise the Secretary of State upon such matters connected with the provision or use of library facilities whether under this

National
Advisory
Councils.

Act or otherwise as they think fit, and upon any questions referred to them by him.

(2) The members of each Council shall be appointed by the Secretary of State, and he shall appoint a member of each Council to be chairman thereof and shall appoint an officer of the Department of Education and Science to be secretary thereto.

(3) Each Council shall include persons who have had experience of the administration of the service provided by library authorities and also persons who have had experience of the administration of libraries managed by bodies other than those authorities.

(4) The persons appointed to be members of either Council shall hold and vacate office in accordance with the terms of their respective appointments, and on ceasing to be members shall be eligible for re-appointment:

Provided that a member may at any time by notice in writing to the Secretary of State resign his office.

(5) Each Council shall determine its own procedure, but the quorum at meetings of a Council shall be such as may be determined by the Secretary of State.

Regional
councils for
inter-library
co-operation.

3.—(1) As soon as may be after the commencement of this Act, the Secretary of State shall by order designate as library regions areas together extending to the whole of England and Wales.

(2) The Secretary of State, after consultation with the library authorities within the region, shall make a scheme for each library region providing—

(a) for the constitution, incorporation and functioning of a library council for the region consisting of persons representing each of those authorities and such other persons as may be provided for by the scheme, and having a duty to make and supervise the working of arrangements for facilitating the co-operation of those authorities with one another and with other bodies within or outside the region having functions in relation to libraries; and

(b) for the observance by each of those authorities of any requirements made by the library council, including requirements as to the payment by the authority of contributions towards the expenses of the council, and containing such other provisions directed to the promotion of inter-library co-operation within and outside the region as may appear to the Secretary of State to be expedient.

(3) At least a majority of the library council for a region shall consist of members of library authorities within the region, and an authority none of whose members is included in the

library council shall be represented on the council by such of the persons so included as may be determined in accordance with the scheme establishing the council.

(4) A power conferred by this section to make an order or scheme shall be exercisable by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament; and an order or scheme made under this section may be varied or revoked by a further order or scheme thereunder:

Provided that before varying or revoking a scheme the Secretary of State shall consult the library council in question as well as the relevant library authorities.

(5) The Secretary of State may, with a view to improving the efficiency of the public library service or promoting its development, require any library council established under this section to enter into and carry into effect arrangements with another such council or with any other body having functions in relation to libraries.

4.—(1) Subject to the provisions of this Act, each of the following local authorities shall be a library authority, that is to say— Library authorities and areas.

- (a) the council of a county or county borough;
- (b) the council of a London borough, and the Common Council of the City of London;
- (c) the council of a non-county borough or urban district where either—
 - (i) the council was a library authority immediately before the commencement of this Act, or
 - (ii) the council has been approved by the Secretary of State under section 6(3) below,

and any other local authority being a library authority immediately before the commencement of this Act shall at that commencement cease to be a library authority.

(2) The functions of a library authority as such shall be exercisable within an area (in this Act referred to as a "library area") consisting of the administrative area of the authority, or—

- (a) in the case of a county council, consisting of so much of its administrative area as excludes the library area of any other library authority, or
- (b) in the case of a joint board established under section 5 below, consisting of the areas which, if the authorities constituting the board were library authorities, would form their library areas,

and may also be exercised elsewhere than within its library area if the authority thinks fit.

Joint boards.

5.—(1) The Secretary of State may with the agreement of two or more library authorities by order provide for the formation of a joint board consisting of those authorities, which, from the date on which it begins to exercise its functions, shall be a library authority in lieu of those authorities; and without prejudice to the operation of section 293(1) of the Local Government Act 1933 (which authorises the application of that Act to joint boards) the order may provide for the incorporation of the joint board, for its procedure (including quorum), and for the manner in which its expenses are to be defrayed.

The said section 293(1) shall apply to the formation under this section of a joint board comprising the Common Council of the City of London as if the Common Council were a local authority within the meaning of the said Act of 1933.

(2) On the date on which a joint board established under this section begins to exercise its functions—

- (a) the library officers of the authorities constituting the board shall by the operation of this provision be transferred to and become officers of the joint board; and
- (b) the library assets and liabilities of those authorities shall, save as may be otherwise provided by the order setting up the board, be transferred by the operation of this provision to the board.

(3) The Secretary of State may on the application of an authority comprised in a joint board established under this section by order provide for the dissolution of the board, and on its dissolution the authorities constituting the board shall again become library authorities:

Provided that if any of those authorities is the council of a non-county borough or urban district the order may, at the request of the council or where the population of the borough or urban district is less than 40,000, provide that the council shall not so become a library authority.

(4) On the dissolution of a joint board established under this section—

- (a) each library officer of the board shall by the operation of this provision—
 - (i) where at the formation of the board he was a library officer of one of the authorities which on the dissolution of the board again become library authorities, be transferred to and again become an officer of that authority;
 - (ii) in any other case be transferred to and become an officer of such authority (being one of the authorities which on the dissolution of the board again

become library authorities) as may be agreed between those authorities or, in default of agreement, determined by the Secretary of State ;

- (b) the library assets and liabilities of the board shall be divided among the said authorities as provided by the order dissolving the board.

6.—(1) Where—

- (a) the council of a non-county borough or urban district was a library authority immediately before a date (in this section referred to as a “review date”), being the date of the commencement of this Act or falling ten years after that or any subsequent review date, and
- (b) the population of the borough or urban district at the review date is less than 40,000,

Special provisions as to non-county boroughs and urban districts.

the Secretary of State, if, after consulting the council of the borough or urban district and also the county council or, where the county council is comprised in a joint board established under section 5 above, the joint board, and after taking account of any likely changes in the area and population of the borough or urban district and of other relevant matters, he is of opinion that to do so would lead to an improvement in the library facilities made available under this Act in the borough or urban district, may at any time before the next review date by order provide that on a date specified in the order the council of the borough or urban district shall cease to be a library authority.

(2) The power to make an order under subsection (1) above shall be exercisable by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) Where the council of a non-county borough or urban district was not a library authority immediately before a review date but the population of its administrative area at that date is not less than 40,000, the Secretary of State may on an application made by the council within six months after that date approve the council as a library authority, and where he does so the council shall become a library authority on a date specified by him in giving notice of his approval to the council.

(4) Before determining an application under subsection (3) above the Secretary of State shall consult the county council or, where the county council is comprised in a joint board established under section 5 above, the joint board.

(5) Where the council of a non-county borough or urban district is a library authority it may at any time resolve to relinquish its functions as such, and if the Secretary of State by

order confirms the resolution the council shall cease to be a library authority on such date as is specified in that behalf in the order.

(6) Where, under any provision of this Act other than section 5 above, the council of a non-county borough or urban district at any time ceases to be a library authority—

(a) the library officers of the council shall by the operation of this provision be transferred to and become officers of the authority assuming the library functions of the council, that is to say, where after that time the library area of the council will be comprised in the library area of a joint board, that joint board, and in any other case the county council ; and

(b) the library assets and liabilities of the council shall, save as may be otherwise directed by the Secretary of State, be transferred by the operation of this provision to the said authority.

(7) Where the council of a non-county borough or urban district is approved by the Secretary of State under subsection (3) above he may by order make such provision as he thinks fit with respect to the transfer to the council of any library assets and liabilities of the county council or, where the county council is comprised in a joint board established under section 5 above, of the joint board, being assets and liabilities which relate, or are referable, to the library area of the approved council.

General
duty of
library
authorities.

7.—(1) It shall be the duty of every library authority to provide a comprehensive and efficient library service for all persons desiring to make use thereof, and for that purpose to employ such officers, to provide and maintain such buildings and equipment, and such books and other materials, and to do such other things, as may be requisite :

Provided that although a library authority shall have power to make facilities for the borrowing of books and other materials available to any persons it shall not by virtue of this subsection be under a duty to make such facilities available to persons other than those whose residence or place of work is within the library area of the authority or who are undergoing full-time education within that area.

(2) In fulfilling its duty under the preceding subsection, a library authority shall in particular have regard to the desirability—

(a) of securing, by the keeping of adequate stocks, by arrangements with other library authorities, and by any other appropriate means, that facilities are avail-

able for the borrowing of, or reference to, books and other printed matter, and pictures, gramophone records, films and other materials, sufficient in number, range and quality to meet the general requirements and any special requirements both of adults and children; and

- (b) of encouraging both adults and children to make full use of the library service, and of providing advice as to its use and of making available such bibliographical and other information as may be required by persons using it; and
- (c) of securing, in relation to any matter concerning the functions both of the library authority as such and any other authority whose functions are exercisable within the library area, that there is full co-operation between the persons engaged in carrying out those functions.

8.—(1) Except as provided by this section, no charge shall be made by a library authority (otherwise than to another library authority) for library facilities made available by the authority. Restriction on charges for library facilities.

(2) A library authority may make a charge not exceeding such amount as may be specified in that behalf by the Secretary of State—

- (a) for notifying a person that a book or other article reserved by him has become available for borrowing, or
- (b) in respect of failure to return a book or other article before the end of the period for which it was lent.

(3) A library authority may make a charge for the borrowing of any article, except that where under section 7(1) above the authority is under a duty to make facilities for borrowing available to a person the authority shall not charge that person for borrowing—

- (a) a book, journal, pamphlet or similar article, or
- (b) a reproduction made by photographic or other means of the whole or a part of any such article.

(4) A library authority may make a charge for supplying book catalogues or indexes, or any similar articles, where the articles become the property of the persons to whom they are supplied.

(5) Where facilities made available to any person by a library authority go beyond those ordinarily provided by the authority as part of the library service the authority may make a charge for the provision of those facilities.

9.—(1) A library authority may make contributions towards the expenses of another library authority or of any other person providing library facilities for members of the public. Contributions and grants.

(2) The Secretary of State may make grants to any body which maintains book catalogues or indexes to which all library authorities are permitted to refer, or otherwise makes available to all library authorities facilities likely to assist them in the discharge of their duty under section 7(1) above.

Default
powers of
Secretary
of State.

10.—(1) If—

- (a) a complaint is made to the Secretary of State that any library authority has failed to carry out duties relating to the public library service imposed on it by or under this Act ; or
- (b) the Secretary of State is of opinion that an investigation should be made as to whether any such failure by a library authority has occurred,

and, after causing a local enquiry to be held into the matter, the Secretary of State is satisfied that there has been such a failure by the library authority, he may make an order declaring it to be in default and directing it for the purpose of removing the default to carry out such of its duties, in such manner and within such time, as may be specified in the order.

(2) If a library authority with respect to which an order has been made under the preceding subsection fails to comply with any requirement of the order, the Secretary of State, instead of enforcing the order by mandamus or otherwise,—

- (a) if the authority is the council of a non-county borough or urban district, may make an order providing that on a date specified therein the council shall cease to be a library authority, or
- (b) if the authority is a joint board, may make an order providing that on a date specified therein the board shall be dissolved and—
 - (i) that on its dissolution the authorities constituting the board, other than any council of a non-county borough or urban district with a population less than 40,000, shall again become library authorities ;
 - (ii) that any council of a non-county borough or urban district comprised in the board with a population less than 40,000 shall or shall not so become a library authority, as the Secretary of State thinks fit ;
 - (iii) that the functions relating to the public library service of such of those library authorities as may be specified in that behalf in the order shall be transferred to the Secretary of State, or

(c) in any other case, may make an order providing that the functions of the authority relating to the public library service shall be transferred to the Secretary of State.

(3) A power conferred by subsection (2) above to make an order shall be exercisable by statutory instrument, which shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(4) Where functions of a library authority have been transferred to the Secretary of State under subsection (2) above he may at any time by order transfer those functions back to the authority, and the order may contain such supplemental provisions as may appear to him to be expedient for that purpose.

(5) Section 324 of the Public Health Act 1936 (which relates to expenses incurred in exercising the functions of a body in default under that Act) shall apply in relation to expenses incurred by the Secretary of State in exercising the functions of a library authority as if the Secretary of State were the Minister therein referred to and the reference to a local authority included any library authority.

11.—(1) A library authority to which an officer is transferred by the operation of any provision of this Act shall be under a duty to secure that—

Supplemental provisions as to transfers of officers, assets and liabilities.

(a) so long as he continues in the employment of the authority by virtue of the transfer and until he is served with a statement in writing of new terms and conditions of employment, he enjoys terms and conditions of employment not less favourable than those he enjoyed immediately before the date of transfer; and

(b) the said new terms and conditions are such that—

(i) so long as he is engaged in duties reasonably comparable to those in which he was engaged immediately before the date of transfer, the scale of his salary or remuneration, and

(ii) the other terms and conditions of his employment,

are not less favourable than those he enjoyed immediately before the date of transfer.

(2) Section 60(2) of the Local Government Act 1958 (which requires provision to be made by regulations for the payment in certain cases of compensation for loss of employment or loss or diminution of emoluments) shall apply as respects persons—

(a) who suffer loss of employment or loss or diminution of emoluments in consequence of their transfer by the operation of any provision of this Act, or

- (b) who, being officers of a county council or a joint board established under section 5 of this Act, suffer loss of employment or loss or diminution of emoluments in consequence of a reduction in the library area of the county council or joint board resulting from the approval of the council of a non-county borough or urban district as a library authority,

as it applies in the cases there provided.

(3) Where any library officers or library assets and liabilities have been transferred by the operation of this Act from one local authority to another, those authorities may by agreement provide for the making of such adjustments in relation to their respective property, rights and liabilities as appear to them to be desirable having regard to the transfer, and any such agreements may in particular provide for the making of payments by either party thereto.

(4) Where it appears to the Secretary of State that having regard to any such transfer it is desirable that any such adjustment as is mentioned in subsection (3) above (including any payment by either of the authorities concerned) should be made, he may, subject to any agreement made under that subsection and after consultation with the authorities concerned, by directions make provision for that adjustment.

(5) Where any question arises as to whether any library officers or library assets and liabilities have been transferred by the operation of this Act from one local authority to another, that question shall be determined by the Secretary of State.

(6) The provisions of Schedule 1 to this Act shall have effect as respects superannuation and other benefits in the cases there provided.

Museums and art galleries

Provision
and
maintenance
of museums
and galleries.

12.—(1) A local authority may provide and maintain museums and art galleries within its administrative area or elsewhere in England or Wales, and may do all such things as may be necessary or expedient for or in connection with the provision or maintenance thereof:

Provided that a local authority not being a library authority and not already maintaining a museum or art gallery under this section shall not provide a museum or art gallery thereunder without the consent of the Secretary of State; and that consent may be given subject to such conditions as the Secretary of State thinks fit, and he may at any time vary or revoke any of the conditions.

(2) A local authority maintaining a museum or art gallery under this section may with the consent of the Secretary of

State enter into an agreement with any other local authority empowered to maintain it for the transfer of the museum or gallery and its collections to that authority.

13.—(1) A local authority may make a charge for admission to a museum or art gallery maintained by it under section 12 of this Act. Charges for admission to museums and galleries.

(2) In determining whether, and in what manner, to exercise its powers under this section in relation to a museum or gallery, a local authority shall take into account the need to secure that the museum or gallery plays its full part in the promotion of education in the area, and shall have particular regard to the interests of children and students.

14. A local authority being a library authority or maintaining a museum or art gallery under section 12 above may make contributions towards expense incurred by any person— Contributions to expenses of museums and galleries.

(a) in providing or maintaining a museum or art gallery in any place within England or Wales, or

(b) in providing advisory or other services or financial assistance for the benefit of a museum or art gallery in any such place.

15.—(1) A local authority maintaining a museum or art gallery under section 12 of this Act may establish a fund to be used for the purchase of objects for exhibition in any museum or art gallery for the time being so maintained by the authority. Power to establish fund for purchase of exhibits.

(2) Where at the time a fund is established by it under this section a local authority maintains under a local Act a fund which it is authorised to use for the purchase of such objects as aforesaid, the Minister of Housing and Local Government may, by order made on the application of the local authority, provide for the amalgamation of the funds.

(3) The provisions of Schedule 2 to this Act shall apply with respect to the management of a fund established by a local authority under this section.

(4) This section shall not apply to the council of a parish or the council of a borough included in a rural district.

General

16. The Secretary of State may hold an inquiry into any matter relating to the functions of a local authority under this Act. Inquiries.

17. The Secretary of State shall annually lay before each House of Parliament a report on the exercise of his functions under this Act. Annual report.

**Compulsory
acquisition
of land.**

18.—(1) The Secretary of State may authorise any local authority being a library authority to purchase compulsorily any land which it requires for the purposes of its functions under this Act, and the Acquisition of Land (Authorisation Procedure) Act 1946 shall apply as if this Act had been in force immediately before the commencement of that Act.

(2) In subsection (1) above "land" includes any interest in or right over land.

Byelaws.

19.—(1) A local authority may make byelaws regulating the use of facilities provided by the authority under this Act and the conduct of persons in premises where those facilities are provided, and the Secretary of State shall be the person by whom byelaws so made are to be confirmed.

(2) Without prejudice to section 251 of the Local Government Act 1933 (under which byelaws may include provisions for imposing fines), byelaws made under this section may include provisions for enabling officers of the local authority to exclude or remove from premises maintained by the authority under this Act any person who contravenes the byelaws.

(3) As well as complying with section 250(7) of the said Act of 1933 (which requires byelaws, when confirmed, to be made available to the public), a local authority shall cause a copy of byelaws made by it and in force under this section to be displayed in any premises maintained by the authority under this Act to which the public have access.

**Use of
premises for
educational
or cultural
events.**

20. A local authority maintaining premises under this Act may use the premises, or allow them to be used (whether in return for payment or not), for the holding of meetings and exhibitions, the showing of films and slides, the giving of musical performances, and the holding of other events of an educational or cultural nature, and in connection therewith may, notwithstanding anything in section 8 above, make or authorise the making of a charge for admission.

**Expenses
of county
councils.**

21.—(1) Expenses of a county council under this Act in respect of the public library service shall not be charged on any non-county borough or urban district outside the library area of the county council; and expenses of a county council relating to the provision or maintenance of a museum or art gallery under this Act or in respect of contributions by the council under section 14 above shall be charged on the administrative area of any local authority maintaining a museum or art gallery under section 12 above only with the consent of that local authority.

(2) A condition imposed in relation to a local authority under the proviso to section 12(1) above may require the authority to give consent under the preceding subsection.

(3) Where a county council is comprised in a joint board established under section 5 of this Act—

- (a) references in subsection (1) above to the library area of the council shall be construed as references to the area which would be its library area if the joint board did not exist and each authority comprised in it were a library authority; and
- (b) references therein to a local authority maintaining a museum or art gallery under section 12 above shall not include the county council.

22. There shall be defrayed out of moneys provided by Parliament any expenses incurred by the Secretary of State for the purposes of this Act and any increase attributable to this Act in the sums payable out of moneys so provided by way of Rate-deficiency Grant or Exchequer Equalisation Grant under the enactments relating to local government in England and Wales or in Scotland. Expenses of Secretary of State, etc.

23. The provisions of this Act shall have effect notwithstanding any inconsistent provision in a local Act, and any public library maintained by a library authority at the commencement of this Act under a power conferred by a local Act shall thereafter be treated as maintained under this Act and not under that power; but save as aforesaid nothing in this Act shall be taken to derogate from the provisions of any local Act. Local Acts.

24.—(1) The Secretary of State may, after consultation with the Council of the Isles of Scilly, by order made by statutory instrument provide that this Act shall apply to those Isles, subject to such modifications as may be specified in the order, as if the Isles were a county and the Council thereof were the county council. Isles of Scilly.

(2) An order under this section may contain such transitional provisions as may appear to the Secretary of State, after such consultation as aforesaid, to be expedient; and may be varied or revoked by a subsequent order thereunder.

25. In this Act—

Interpretation.

“library area” has the meaning assigned to it by section 4(2) of this Act;

“library assets and liabilities” means property held by a local authority solely or mainly for the purposes of any functions exercisable by it in relation to the public library service and rights and liabilities to which the authority is entitled or subject by reason of the exercise of such functions;

“library authority” means a library authority under this Act or, in relation to a time before the commencement of this Act, under the Public Libraries Acts 1892 to 1919 ;

“library officer” means an officer of a local authority employed by the authority solely or mainly for the purposes of any functions exercisable by it in relation to the public library service ;

“local authority” means the council of a county, county borough, London borough, county district or parish, or the Common Council of the City of London, or the council of a borough included in a rural district, or a joint board established under section 5 of this Act ;

“officer” includes a servant ;

“population” means population as estimated in the latest estimate published by the Registrar General for England and Wales.

Short title,
repeals etc.,
commence-
ment and
extent.

26.—(1) This Act may be cited as the Public Libraries and Museums Act 1964.

(2) The enactments specified in the first and second columns of Schedule 3 to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(3) In the proviso to section 94 of the Local Government Act 1933 inserted by section 10(1) of the Education Act 1946 (by virtue of which teachers in institutions maintained or assisted by a local education authority are excepted from disqualification from membership of local authority committees appointed for certain purposes), the following shall be substituted for paragraph (c):—

“(c) appointed under this Act for purposes connected with the execution of the Public Libraries and Museums Act 1964 ;”.

(4) In section 193(5) of the Local Government Act 1933 (which restricts the sums which can be required to be raised in any financial year to meet the expenses of a parish meeting), after the words “the adoptive Acts” there shall be inserted the words “or the Public Libraries and Museums Act 1964” ; and in Schedule 1 to the Parish Councils Act 1957 (which specifies expenses of a parish council which are to be disregarded for the purposes of section 193(3) of the Local Government Act 1933), the following shall be substituted for paragraph 2:—

“2. Any expenditure under the Public Libraries and Museums Act 1964”.

(5) Byelaws in force immediately before the commencement of this Act under section 7 of the Museums and Gymnasiums Act 1891 or section 3 of the Public Libraries Act 1901 shall not be invalidated by the repeal of those Acts but shall have effect as if they had been made, and confirmed by the Secretary of State, under section 19 of this Act.

(6) Paragraphs (a) and (b) of section 6(6) of this Act shall apply in relation to a parish council which at the commencement of this Act ceases to be a library authority as they apply in relation to the council of a non-county borough or urban district which at any time ceases to be a library authority.

(7) This Act shall come into force on 1st April 1965.

(8) This Act shall not extend to Scotland or Northern Ireland.

SCHEDULES

Section 11.

SCHEDULE 1

SUPERANNUATION AND OTHER BENEFITS IN CASES OF TRANSFER ETC.

1.—(1) Subject to the following sub-paragraphs, any provisions contained in or made under—

- (a) the Local Government Superannuation Acts 1937 to 1953, the Superannuation (Miscellaneous Provisions) Act 1948 or the National Insurance Act 1959, or
- (b) any Act passed after the passing of this Act whereby any of those Acts is amended, extended or superseded, or
- (c) any local Act under which any authority maintains a superannuation fund,

shall, in relation to a library officer transferred by the operation of this Act from one local authority to another, have effect (save in so far as, in the case of a provision coming into operation after the passing of this Act, the contrary is expressly provided) as if his employment by those authorities were one continuous employment.

(2) Sub-paragraph (1) above shall not have effect for the purposes of section 29 of the Local Government Superannuation Act 1937 (which provides for the payment of transfer values on a change from one superannuation fund to another), but, with respect to any transfer values which apart from any direction under this sub-paragraph would, in the case of a transfer of a library officer, be payable under the said section 29 by the administering authority or joint committee maintaining one superannuation fund (in this sub-paragraph referred to as the transferor fund) to the administering authority or joint committee maintaining another superannuation fund, the Minister of Housing and Local Government, if in the circumstances he considers it equitable to do so, may give directions for securing that—

- (a) no such transfer values will be payable in consequence of the transfer ;
 - (b) the assets comprised in the transferor fund will be apportioned in such manner as the administering authorities or joint committees concerned may agree or, in default of such agreement, the said Minister may determine ; and
 - (c) in respect of such part of those assets as may be so agreed or determined, such financial adjustments (whether by way of the transfer of assets or the making of a payment or both) as may be so agreed or determined shall be made ;
- and any directions given under this sub-paragraph may include such incidental, supplementary and consequential provisions as the said Minister considers appropriate.

A direction shall not be given under section 11(4) of this Act with respect to any matter as to which a direction is authorised to be given under this sub-paragraph.

(3) In any case where the pensions provisions to which, by virtue of his employment as such, a library officer transferred by the operation of this Act is subject immediately before the transfer are not the same as the pensions provisions to which he becomes so subject immediately thereafter, the second-mentioned provisions shall have effect in relation to him as if they required him to make the like contributions (if any) as he would have been liable to make, and conferred on him rights corresponding with those which he would have enjoyed, if he had remained subject to the first-mentioned provisions, and as if they conferred on the authority to which he is transferred any discretionary power to pay pensions or increased pensions which was exercisable under the first-mentioned provisions by the authority from which he was transferred. SCH. 1

(4) Sub-paragraph (1) above shall not affect the power to make regulations under section 36(6) of the Local Government Superannuation Act 1937 with respect to such administrative action to be taken by local authorities as is mentioned in Schedule 3 to that Act, and, except as may be expressly provided in the regulations, shall not affect the operation of any such regulations.

2. Any such statutory resolution as is mentioned in section 3(2)(b) or (c) (designation of persons as contributory employees) of the Local Government Superannuation Act 1937 which—

(a) was passed by the authority from which a library officer is transferred by the operation of this Act, and

(b) is in force at the time the transfer takes effect,

in so far as immediately before that time it applies to the library officer transferred, shall continue in force and have effect in relation to him as if it had been passed by the authority to which he is transferred.

3. Where, immediately before the time at which library officers of any description are transferred by the operation of this Act from one local authority to another, it was the prevailing practice of the first-mentioned authority, in relation to officers of that description, to exercise beneficially (that is to say, so as to secure the making by the authority of payments or of increased payments) any discretionary power exercisable by it by virtue of any pensions provisions, it shall be the duty of the other authority, in relation to those officers, to exercise that power (or any corresponding power under the pensions provisions for the time being in force) in a way which is not less beneficial than that practice; and section 35 of the Local Government Superannuation Act 1937 shall apply to any question arising under this paragraph.

4.—(1) Where a joint board established under section 5 of this Act is dissolved, and at any time before its dissolution a gratuity by way of periodical payments or an annuity—

(a) was granted to any person by the board on his ceasing to be employed by the board, or

(b) was granted to the widow or any other dependant of a person who died while in the employment of the board, or who died during the currency of such a gratuity granted to him as mentioned in paragraph (a) above,

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and, if the board had not been dissolved at that time, one or more payments in respect of that gratuity would under the terms of the grant have fallen to be made by the board after that time (whether the board would have been obliged to make those payments or not), those payments shall be made by such authority (being one of the authorities which on the dissolution of the board again become library authorities) as the Secretary of State may determine.

(2) Without prejudice to sub-paragraph (1) above, where for the purposes of any pensions provision the board, if it had not been dissolved, would at any time after the date on which it is dissolved have been the employing authority or former employing authority in relation to—

(a) a person who before that time died while in the employment of the board, or otherwise ceased to be employed by the board ; or

(b) the widow or any other dependant of such a person,

such authority (being one of the authorities which on the dissolution of the board again become library authorities) as the Secretary of State may determine shall be treated as being at that time the employing authority or former employing authority for those purposes in relation to that person, or to that person's widow or other dependant, as the case may be.

5. In this Schedule—

“pensions” includes lump sums and gratuities ;

“pensions provision” means a provision relating to pensions contained in or made under a general or local Act.

Section 15.

SCHEDULE 2

MANAGEMENT OF FUNDS FOR PURCHASE OF EXHIBITS

Payments into fund

1. No payment shall be made into the fund (hereinafter referred to as the “art fund”) unless the payment is authorised or required to be made by the following provisions of this Schedule.

2.—(1) There may be paid into the art fund from the county fund or, as the case may be, the general rate fund such sums as the local authority determine, but, except with the consent of the Minister of Housing and Local Government,—

(a) the aggregate of sums so paid in any financial year shall not exceed the product of a rate of one-fifth of a penny in the pound for the administrative area of the authority for that year ;

(b) a sum shall not be so paid if the payment thereof would cause the balance of the art fund to exceed the product of a rate of one penny in the pound for that area for that year.

(2) The above references to the product of a rate for an area shall, where there is more than one rating area within the area,

be construed as references to the aggregate product of a rate of the amount in question for all rating areas within the area.

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(3) The product of a rate of any amount for a rating area shall for the purposes of this paragraph be taken to be the product of a rate of that amount for that area ascertained, in the case of an area other than a county borough, in accordance with rules made for the purposes of section 9(2) of the Rating and Valuation Act 1925, or, in the case of a county borough, in accordance with rules made by the Minister of Housing and Local Government for the purposes of Part I of the Local Government Act 1958.

3. Where any object previously kept for exhibition in a museum or art gallery maintained by the local authority under section 12 of this Act is sold by the authority, and the proceeds of sale are not subject to any trust the terms of which prevent their being used for the purchase of other objects for exhibition either in that museum or gallery or in any other museum or art gallery for the time being so maintained, the proceeds of sale or any part thereof may be paid into the art fund.

Power of investment

4. Until it is required for the purposes of the art fund, money therein may be invested by the local authority in the like investments as trustees are for the time being by law authorised to make, and for this purpose section 7 of the Trustee Investments Act 1961 (which applies the preceding sections of the Act to persons, other than trustees, having trustee investment powers) shall have effect as if this Act had been passed before that Act:

Provided that for the purpose of the making of investments by the authority under this paragraph, paragraph 9 of Part II of Schedule 1 to that Act (which specifies local authorities whose securities are to be authorised investments) shall not apply to the authority or to a joint board comprising the authority and established under section 5 of this Act.

5. Income arising from investments made under paragraph 4 above shall be carried to the county fund or the general rate fund, as the case may be, and an equivalent sum shall be paid from that fund into the art fund.

Application of foregoing provisions to joint boards

6. Where the local authority is a joint board established under section 5 of this Act—

- (a) references in this Schedule to the county fund or general rate fund shall be construed as references to the general revenues of the joint board, and references to the administrative area of the local authority shall be construed as references to the library area of the joint board;
- (b) the proviso to paragraph 4 above shall be treated as disapplying paragraph 9 of Part II of Schedule 1 to the Trustee Investments Act 1961 in relation to the authorities constituting the joint board as well as in relation to the board itself.

Section 26.

SCHEDULE 3

REPEALS

Chapter	Short title	Extent of repeal
54 & 55 Vict. c. 22.	The Museums and Gymnasiums Act 1891.	The whole Act, so far as unrepealed.
55 & 56 Vict. c. 53.	The Public Libraries Act 1892.	The whole Act.
56 & 57 Vict. c. 11.	The Public Libraries (Amendment) Act 1893.	The whole Act.
56 & 57 Vict. c. 73.	The Local Government Act 1894.	Section 7(1)(e).
61 & 62 Vict. c. 53.	The Library Offences Act 1898.	In section 3, paragraph (a).
1 Edw. 7. c. 19.	The Public Libraries Act 1901.	The whole Act.
9 & 10 Geo. 5. c. 93.	The Public Libraries Act 1919.	The whole Act.
15 & 16 Geo. 5. c. 90.	The Rating and Valuation Act 1925.	Section 2(6).
23 & 24 Geo. 5. c. 51.	The Local Government Act 1933.	In section 305, in the definition of "The Adoptive Acts" the words "and (e) The Public Libraries Acts 1892 to 1919". In Schedule 7, the reference to the Public Libraries Acts 1892 to 1919.
9 & 10 Geo. 6. c. 49.	The Acquisition of Land (Authorisation Procedure) Act 1946.	In Schedule 4, the entry relating to the Public Libraries Act 1919.
9 & 10 Geo. 6. c. 50.	The Education Act 1946.	Section 14(3).
8 & 9 Eliz. 2. c. 58.	The Charities Act 1960.	In Schedule 6, the entry relating to the Public Libraries Act 1892.
1963 c. 33 ...	The London Government Act 1963.	Section 56.

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Table of Statutes referred to in this Act

Short Title	Session and Chapter
Museums and Gymnasiums Act 1891	54 & 55 Vict. c. 22.
Public Libraries Act 1901	1 Edw. 7. c. 19.
Rating and Valuation Act 1925	15 & 16 Geo. 5. c. 90.
Local Government Act 1933	23 & 24 Geo. 5. c. 51.
Public Health Act 1936	26 Geo. 5 & 1 Edw. 8. c. 49.
Local Government Superannuation Act 1937 ...	1 Edw. 8 & 1 Geo. 6. c. 68.
Acquisition of Land (Authorisation Procedure) Act 1946.	9 & 10 Geo. 6. c. 49.
Education Act 1946	9 & 10 Geo. 6. c. 50.
Superannuation (Miscellaneous Provisions) Act 1948	11 & 12 Geo. 6. c. 33.
Parish Councils Act 1957	5 & 6 Eliz. 2. c. 42.
Local Government Act 1958	6 & 7 Eliz. 2. c. 55.
National Insurance Act 1959	7 & 8 Eliz. 2. c. 47.
Trustee Investments Act 1961	9 & 10 Eliz. 2. c. 62.